

In examining this same question below, the district court found the Second Circuit’s opinion in *Matar v. Dichter* more persuasive. 563 F.3d 9 (2d Cir. 2009). In *Matar*, plaintiffs sued the former head of the Israeli Security Agency for his role in an Israel-sanctioned bombing which killed the leader of a terrorist group, but which also incidentally killed the plaintiffs’ family members. *Id.* at 10–11. The Israeli official, Avraham Dichter, argued that he enjoyed foreign official immunity. Because *Matar* was decided pre-*Samantar*, the Second Circuit analyzed immunity alternatively under both the FSIA and the common law. The court reiterated that “there is no general *jus cogens* exception to FSIA immunity.” *Id.* at 14. And, relying on the State Department’s statement of interest in favor of immunity, the court held that Dichter was entitled to common law foreign official immunity. *Id.* at 15 (“The Executive Branch’s determination that a foreign [head-of-state] should be immune from suit even where the [head-of-state] is accused of acts that violate *jus cogens* norms is established by a suggestion of immunity.”) (quoting *Ye v. Zemin*, 383 F.3d 620, 627 (7th Cir. 2004)).

The Doğans frame their argument as a request that this court adopt the Fourth Circuit’s view. But they actually ask this court to go one step further than the Fourth Circuit went in *Yousuf*. In *Yousuf*, the State Department had filed a “suggestion of non-immunity,” highlighting the facts that (1) the defendant was “a former official of a state with no currently recognized government to request immunity on his behalf” and (2) he was a U.S. legal permanent resident, enjoying “the protections of U.S. law,” and thus “should be subject to the jurisdiction of the courts.” *Yousuf*, 699 F.3d at 777. Although the court ultimately held that foreign officials are not immune for *jus cogens* violations, it did not have occasion to consider whether that should be the case